

**BRUMBAUGH v. APPALOOSA ROAD COMM. SERVICES
DIST.**

21CV45171

DEFENDANT’S DEMURRER TO THIRD AMENDED PETITION

This is an administrative writ of mandate alleging “Brown Act” violations relating to the imposition of a *de minimus* real property parcel tax increase. Before the Court this day is a defense demurrer to the operative Third Amended Petition. Contrary to moving party’s insinuation (see Reply Brief 2:27-3:5), this Court has only addressed the legal sufficiency of petitioner’s claim one time (see Minute Order dated 07/02/21), and at that time found “a reasonably possibility that Petitioner can state a good cause of action.” However, since that time, a curious wrinkle has come to light necessitating further briefing.

On 05/07/19, 82% of the qualified electorate approved the *Appaloosa Road Community Services District Measure B*, which increased the annual parcel tax in the Appaloosa Zone from \$75 to \$175. The ballot itself identified the following streets as part of the Appaloosa Zone: Appaloosa Road, Chestnut Court, Chestnut Way, Dunn Road, Filly Road, Hunter Road, Paint Road, Shetland Road and Welsh Road. For reasons not entirely clear, the ballot failed to mention Pinto Road or Morgan Road, both of which are in the Appaloosa Zone.

On 05/04/21, 88% of the qualified electorate approved the *Appaloosa Road Community Services District Measure D*, which applied the same \$100 increase to Pinto Road and Morgan Road – thereby specifically encumbering every parcel in the Appaloosa Zone with the same \$100 increase.

Petitioner herein contends that the Appaloosa Road Community Services District Board of Directors violated due process provisions regarding notice and access when vetting the decision and resolution to put Measure D on the ballot, but the Board’s conduct seems harmless if the issue was properly presented to the public. Petitioner must show prejudice from an alleged Brown Act violation. Does petitioner allege anything amiss or untoward regarding the election process itself? Were the voters actively misled by something the Board did? If not, it seems the matter may now be moot. A case becomes moot when a court ruling can have no practical impact or cannot provide the parties with effective relief. (*In re Stephon L.* (2010) 181 Cal.App.4th 1227, 1231; *Corrales v. Bradstreet* (2007) 153 Cal.App.4th 33, 46-47.) Cases or controversies which have been rendered moot are subject to dismissal because courts generally decide only “actual” or justiciable controversies, i.e, cases in which effective relief can be granted, and do not normally render advisory opinions. (*Ebensteiner Co., Inc. v. Chadmar Group* (2006) 143 Cal.App.4th 1174, 1178–1179; See *Julian Volunteer Fire Co. Assn. v. Julian-Cuyamaca Fire Protection Dist.* (2021) 62 Cal.App.5th 583, 603-604 [Brown Act violation

moot by virtue of public election on same issue]; *TransparentGov Novato v. City of Novato* (2019) 34 Cal.App.5th 140, 149-153 [Brown Act violation moot]; *City of Palo Alto v. Public Employment Relations Bd.* (2016) 65 Cal.App.5th 1271, 1320 [Brown Act violation not moot].)

Hearing continued to January 14, 2022, at 9:00 a.m. in Department 2. At least 10 calendar days prior thereto, both sides are invited to file and serve a supplemental memorandum of points and authorities, not to exceed six pages, addressing only the question of mootness.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal order is required.

DEBT MANAGEMENT PARTNERS v. CALLAHAN

21CF13502

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

This is a limited jurisdiction debt collection action. Before the Court is an unopposed statutory motion by plaintiff for judgment on the pleadings. This motion comes on the heels of this Court's recent order deeming admitted eight (8) facts, and the genuineness of three (3) documents, identified in plaintiff's Requests for Admission. From the tenor of the moving papers, it would appear to this Court that the pleading plaintiff wants judgment on is its complaint filed 05/12/21, though the motion makes repeated reference to defendant's answer filed 06/30/21.

The request for judicial notice is granted pursuant to Evidence Code §§ 452 and 453.

A statutory motion for judgment on the pleadings is similar to a demurrer, except that the motion (1) can be made at any time 30 days prior to the initial trial date, but (2) only after defendant has answered and (3) only on the grounds of subject-matter jurisdiction or failure to state a cause of action. CCP §438(c)-(f). The rules governing pleading scrutiny are the same as those applicable to demurrers. (*Bezirdjian v. O'Reilly* (2010) 183 Cal.App.4th 316, 321; *Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.) Thus, the motion will be granted only if no claim or defense is stated.

Initially, this Court notes that moving party failed to provide the required meet and confer declaration. (See CCP §439.) Although "a determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion for judgment on the pleadings," it also cannot be ignored

However, there is a more fundamental problem with the motion. This is the wrong motion to follow RFAs deemed admitted *by a defendant*. Although admitted RFAs are treated as stipulations to the truthfulness of the matters admitted, obviating the need for evidence thereon, the process to use defendant's RFAs toward case disposition is generally with a motion for summary judgment. (See *People v. \$2,709 United States Currency* (2014) 231 Cal.App.4th 1278, 1285; *Sheffield v. Eli Lilly Co.* (1983) 144 Cal.App.3d 583, 611.) While it no doubt seems unduly burdensome to use the summary judgment process with admitted RFAs in hand, the only other option is to attack defendant's answer – but the RFAs here do not negate most of those defenses. An RFA response is preclusive only to the extent required by a literal reading of the request. (*Burch v. Gombos* (2000) 82 Cal.App.4th 352, 359.) Thus, while the RFAs remove the question of defendant taking out the loan and having a balance due, they do not touch upon any of defendant's affirmative defenses.

Plaintiff cites *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, for the